

25NNCV03390 25NNCV03390

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-09-23

Motion: MOTION TO COMPEL FURTHER DISCOVERY RESPONSES

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Case Number: 25NNCV03390 Hearing Date: September 23, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

ANNA
AYVAZYAN,

Plaintiff(s),

vs.

ANUSH
TSATURYAN, et al.,

Defendant(s).

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CASE NO.: 25NNCV03390

[TENTATIVE]

ORDER RE: MOTION TO COMPEL FURTHER DISCOVERY RESPONSES

Dept.

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8:30

a.m.

September

23, 2026

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I.

INTRODUCTION

This action was filed on May 16, 2025,
by plaintiff Anna Ayvazyan ("Plaintiff"). Plaintiff alleges she was involved in
an automobile collision with defendant Anush Tsaturyan ("Defendant") on or
about August 9, 2023. Defendant allegedly failed to stop at a posted stop sign
while Plaintiff was traveling through a controlled intersection, thus colliding
with Plaintiff's vehicle and causing Plaintiff serious injuries.

On August 25, 2026, Plaintiff filed

this motion for an order compelling Defendant to serve further written responses to Plaintiff's Requests for Production of Documents, Set One, Nos. 23 through 27 and produce all responsive documents. Plaintiff also requests the Court impose monetary sanctions against Defendant and/or her counsel of record in the amount of \$4,500.

Defendant filed an opposition brief on September 10, 2026.

Plaintiff filed a reply brief on September 14, 2026.

II.

DISCUSSION

The document requests at issue, Request Nos. 23, 24, 25, 26, and 27, all seek photo and video surveillance footage of Plaintiff, as well as written reports and billing documentation relating to any said surveillance performed from the date of the incident to the present.

Both parties discuss the application of *Suezaki v. Superior Court* (1962) 58 Cal.2d 166, in which the California Supreme Court held that surveillance footage does not constitute a privileged attorney-client communication, but may possibly be entitled to qualified attorney work-product protection. (Id., p. 178.) Plaintiff contends that review of the surveillance discovery is necessary to prepare for Defendant's use of it as impeachment material. (See, e.g., Plaintiff's Separate Statement, p. 7.) Plaintiff also argues that billing documentation is directly related to the "existence, scope, timing, and extent of any surveillance conducted" on Defendant's behalf. (Separate Statement, p. 15.) Plaintiff cites to *Suezaki* for the proposition that surveillance evidence was discoverable in order to protect against surprise and prepare for the examination of the person who conducted the surveillance. (Motion, 8; Reply, p. 4.)

Defendant points out that the *Suezaki* court remanded the matter back to the trial court in order to consider "all of the relevant factors involved and then determine whether, under all the circumstances, discovery would or would not be fair or equitable." (*Suezaki*, supra, 58 Cal.2d at p. 178.)

The work product doctrine exists to

“[p]reserve the rights of attorneys to prepare cases for trial with that degree of privacy necessary to encourage them to prepare their cases thoroughly and to investigate not only the favorable but the unfavorable aspects of those cases.”

(Code Civ. Proc., § 2018.020, subd. (a).) It also exists to “[p]revent attorneys from taking undue advantage of their adversary’s industry and efforts.” (Id., subd. (b).) The work product of an attorney, other than a writing reflecting an attorney’s impressions, conclusions, opinions, or legal research, “is not discoverable unless the court determines that denial of discovery will unfairly prejudice the party seeking discovery in preparing that party’s claim or defense or will result in an injustice.” (Code Civ. Proc., § 2018.030, subd. (b).)

Both parties acknowledge that the

purpose of this surveillance footage is to impeach Plaintiff’s claims regarding the nature and extent of her injuries; Furthermore, the extent of any surveillance conducted reflects defense counsel’s mental impressions, thoughts, opinions, and strategy. The impeachment value of such evidence is lost if the footage is produced before Plaintiff has been deposed and, conversely, the impeachment value of the surveillance footage has been preserved if Plaintiff’s deposition has already taken place. Therefore, at this point, ordering Defendant to produce the surveillance footage would allow Plaintiff to take advantage of defense counsel’s industry and efforts, while one of the purposes of the work product doctrine is to prevent that from happening.

Furthermore, written reports exchanged

between attorney and investigator are attorney-client privileged. (Fireman’s Fund Ins. Co. v. Sup. Ct. (Front Gate Plaza, LLC) (2011) 196 Cal.App.4th 1263, 1274.) Therefore, they are not discoverable under any circumstance absent a showing of waiver. Accordingly, the motion to compel further is DENIED with respect to RFP Nos. 23 through 27.

III.

CONCLUSION

Plaintiff’s motion is DENIED.

Plaintiff’s request for sanctions is DENIED.

Defendant to give notice.

Dated
this 23rd
day of September 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at ALHDEPT3@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.